

Andhra Pradesh Anand Marriages Registration Rules, 2018

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State of Andhra Pradesh - Act

Andhra Pradesh Anand Marriages Registration Rules, 2018

ANDHRA PRADESH

India

Andhra Pradesh Anand Marriages Registration Rules, 2018

Rule ANDHRA-PRADESH-ANAND-MARRIAGES-REGISTRATION-RULES-2018 of 2018

Published on 13 April 2018

Commenced on 13 April 2018

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Andhra Pradesh Anand Marriages Registration Rules, 2018

Published vide Notification No. G.O. Ms. No. 163, Revenue (Registration.I) Department, dated 13.4.2018]

G.O. Ms. No. 163. - In exercise of the powers conferred by sub-section (1) of Section 6 of the Anand Marriage Act, 1909 (Central Act No.7 of 1909), as subsequently amended the Government of Andhra Pradesh hereby make the following rules for registration of Anand Marriages:-

1.

Short title and commencement.

(1)

These rules may be called the Andhra Pradesh Anand Marriages Registration Rules, 2018.

(2)

They shall come into force with immediate effect.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(a)

"Act" means the Anand Marriage Act, 1909 as subsequently amended.

(b)

"Anand marriage" means Anand marriage commonly known as Anand Karaj solemnized under the Act;

(c)

"District Registrar" means the Registrar of a District authorized under Rule 3;

(d)

"Form" means the Form appended to these rules;

(e)

"Register" means a register of Anand marriages maintained by the Registrar of Marriages;

(f)

"Registrar" means the Registrar of Marriages authorized under Rule 3.

3.

Authorisation for registration of marriages.

- The Sub-Registrar and District Registrar concerned shall register the Anand marriages commonly known as Anand Karaj solemnized in the State.

4.

Jurisdiction.

- The Anand Marriage shall be registered with the Registrar within whose jurisdiction such marriage is solemnized.

5.

Maintenance of Register of marriages.

- The Registrar shall maintain Register of Anand Marriages in Form -1 appended to these rules.

6.

Procedure for Registration.

(1)

The parties to the Anand Marriage shall prepare a memorandum in duplicate in Form-II (appended to these rules) and submit the same to the Registrar alongwith documents of proof of solemnization of the marriage to the satisfaction of the Registrar and registration fee of rupees fifty within a period of thirty days from the date of solemnization of their marriage:

Provided that for registration of marriages solemnized before the commencement of these rules, such memorandum may be submitted within a period of one year from the date of commencement of these rules.

(2)

The memorandum shall be signed by both the parties of the marriage and atleast two other persons who have witnessed the marriage.

(3)

The parties to the marriage, who have not registered their marriage within the period specified under sub-rule (1), may get their marriage registered by submitting the memorandum to the Registrar in Form-II and a Declaration in Form-III (appended to these rules) alongwith documents of proof of the solemnization of the marriage to the satisfaction of the Registrar and registration fee of rupees two hundred:

Provided that such Declaration shall be attested by a Gazetted Officer or Member of Parliament or Member of Legislative Assembly or Member of a Local Self Government Institutions or notary.

7.

Verification and registration of marriages.

(1)

Where on verification and scrutiny of the memorandum and documents received under sub-rule (1) or sub-rule (2) of Rule 6, the Registrar is satisfied that the marriages has been solemnized, he may enter the particulars of the marriages in the register and issue Certificate of Anand Marriage in Form-IV (appended to these rules).

(2)

Where the Registrar has reasons to believe that-

(a)

The marriage between the parties has not been performed in accordance with Anand Marriage ceremony; or

(b)

The identity of the parties or the witnesses testifying the solemnization of the marriage is not established; or

(c)

The documents tendered before him does not provide the marital status of the parties, he may, call upon the parties to produce such further information or documents as he may deem necessary, for establishing the identity of the parties and the witnesses or correctness of the information or documents presented to him within a period of thirty days from date of receipt of memorandum.

8.

Refusal of registration of Anand Marriage.

- The Registrar may, for the reasons to be recorded in writing, refuse the registration of marriage, if the parties to the marriage fails to comply with the directions issued by him under sub-rule (2) of Rule 7.

9.

Correction of the entries in the register.

- The Registrar may, on an application made by any party to the marriage, if satisfied that there is typographical or clerical mistakes in the entries made in the register or on the Certificate of Registration in relation to the name, age or date of marriage, make suitable corrections with previous sanction of the District Registrar and affix his signature to each such correction.

10.

Appeal.

(1)

Any person aggrieved by the decision of the Registrar may file an appeal to the District Registrar within a period of three months from the date of communication of such decision:

Provided that the delay, if any, in filing such appeal may be condoned for the reasons to be recorded in writing by the District Registrar if the appellant satisfies District Registrar that he had sufficient cause for not preferring the appeal within the specified period.

(2)

The District Registrar shall, after giving opportunity of hearing to the parties concerned, dispose of the appeal within a period of fifteen days.

11.

Filing of Memorandum.

(1)

The Registrar shall forward duplicate copies of the memorandum received in a month to the District Registrar before the 10th day of every subsequent month.

(2)

The originals of the memorandum received by the Registrar and duplicate copies forwarded to the District Registrar shall be retained as permanent record.

(3)

The Registrar shall also forward particulars of the corrections made under Rule 9 with the date of correction and a copy thereof to the District Registrar.

Form-I

[See Rule 5]

Register of Anand Marriages

1.

Date of Marriage:

2.

Place of Marriage: (Specify hall, auditorium etc)

Local area

Village

Mandal

District

Signature of the Husband

Photo of the Husband to be affixed

Photo of the wife to be affixed

Signature of the Wife

3.

Details of Parties to the Marriage (As on the date of marriage)

Details

Husband

Wife

(a)

Name

(in capital letters)

(b)

Nationality

(c)

Age and date of birth (Sufficient proof shall be produced)

(d)

Permanent address

(e)

Present address

(f)

Previous marital status

Married

Unmarried

Widower

Widow Divorced

(g)

Whether any spouse is living

(if yes, number of spouse living)

(h)

Name of father or guardian and the relationship

(i) Age

(ii) Address

Name of mother

(i) Age

(ii) Address

*Put (?) mark on whichever is applicable.

4.

Witness of solemnization of marriage

(1)

(a) Name:

(b) Address:

(2)

(a) Name:

(b) Address:

Space for Office Use

5.

Date of Receipt of memorandum

6.

Details of Docts/records/proof of marriage
required under Rule 6:

Date:

Registrar:

Registration No. /(Year)

Date..... Registrar.

Form-II

[See Rule 6(1)]

Memorandum for Registration of Anand Marriage

1

Date of Marriage:

2

Place of Marriage:

(Specify hall auditorium etc)

Local area

Village

Mandal

District

3

Details of Parties to the Marriage (As on the
date of marriage)

Details

Husband

Wife

(a)

Name

(In capital
letters)

(b)

Nationality

(c)

Age and date of
birth (Sufficient proof shall be produced)

(d)

Permanent address

(e)

Present address

*(f)

Previous marital
status

Married

Unmarried

Widower

Widow Divorced

(g)

Whether any
spouse is living (if yes, number of spouse living)

Signature with date

(h)

Name of father or
guardian and the relationship

i. Age

ii. Address

(Signature with
date (if he is a consenting party)

(i) Name of
mother

i. Age

ii. Address

Signature with date (if she
is a consenting party)

*Put (?) mark on whichever
is applicable.

4.

Witness of
solemnization of marriage

1)

(a) Name:

(b) Address:

(c) Signature
with date

2)

(a) Name:

(b) Address:

(c) Signature with date

5.

Details of Docts/records/proof of marriage
required under Rule 6:

Declaration of the Parties

We do hereby declare
that the details shown above are true to the best of our
knowledge and belief. Signature of the parties:

Place:

1. Husband

Date:

2. Wife

(For Office Use)

Received by Post/in Person on

.....

Registrar

Registered in the Registrar of Marriages

(Common) on.....as Regn.

No.....

Registrar

Form-III

[See Rule 6(3)]

Declaration

We,(Name of the husband and wife) do hereby declare that our marriage was solemnized
on.....(Date of Marriage) at(place of marriage). The memorandum for registration of marriage could not be

submitted within the period specified under Rule 6 due to(specify reason). We hereby submit memorandum (Form-II) alongwith documents to prove the solemnization of the marriage for the purpose of registration of our marriage.

Place:Date:

Signature of Husband

Signature of Wife

Declaration to be attested by Gazetted Officer/Member of Parliament/Member of Legislative Assembly/Member of Local Self Government Institutions/Notary

I.....hereby certify that the marriage between..... and.....was solemnized on and the fact is personally known to me.

Signature with place, date and seal

Form-IV

[See Rule 7]

Government of Andhra Pradesh Department of Registration and Stamps

Certificate of Marriage

[Issued under Rule 7 of the (Andhra Pradesh) Anand Marriage Registration Rules, 2018]

Certificate No.....

Dated.....

This is to certify that the following information has been taken from the Registrar of Anand Marriages maintained in Fonn No.I in the Office of the Registrar of.....

1. Date of marriage.....

2. Place of marriage

3. Details of parties to the marriage.

Details

Husband

Wife

(a)

Name

(in capital letters)

(b)

Nationality

(c)

Age and date of birth

(d)

Occupation

(e)

Present address

(f)

Name of father or guardian and the relationship

i. Father

ii. Mother

iii. Guardian

Photographs:

(Office seal covering Photographs)

Registration No. with year.....

Date of Registration.....

Registrar

(Name of Local Area)

Issued under my hand and seal on this the day of

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